

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 12
JUNE 24, 2026
8:30 a.m.

1. BRIAN EDWARD SEAHOLM V. VANESSA RUELLYN SEAHOLM

25FL0271

This matter is before the court for hearing of two separate Requests for Orders (RFO).

The first RFO, filed by the Respondent on March 10, 2026, is a request to modify child custody and visitation for the parties' children, SS (age 13) and CS (age 10). This RFO also included a request for temporary emergency orders, which the court denied.

The second RFO, filed by the Petitioner on May 19, 2026, is vaguely worded. It appears to be a one-time request authorizing the paternal grandmother to travel outside the County of El Dorado with the children for Memorial Day Weekend (as opposed to a request for a general lift of the current order that requires pre-authorization for any travel with the parties' children outside the County of El Dorado). This RFO also included a request for temporary emergency orders regarding the Memorial Day Weekend travel, which the court denied.

Respondent's RFO Filed March 10, 2026

A hearing on Respondent's RFO was originally set for April 22, 2026. On that date, the court referred the parties to a CCRC session set for May 07, 2026, continued the hearing to June 24, 2026, and ordered the parties to file any supplemental declarations regarding the CCRC report at least 10 days prior to the continued hearing date.

The court is in receipt of a CCRC report dated May 26, 2026, a copy of which was mailed to both parties per the Clerk's Certificate of Mailing filed May 27, 2026.

On June 04, 2026, the Respondent filed a timely supplemental declaration. Proof of service, also filed June 04, 2026, shows it was electronically served upon the Petitioner that same day.

On June 12, 2026, the Petitioner filed a timely supplemental declaration, a copy of which was electronically served upon the Respondent that same day according to the proof of service, also filed June 12, 2026.

The CCRC report recommends seeking a third-party placement for the children. However, the court finds that third-party placement would be far more detrimental for the children. The CCRC report also sets forth the following two alternatives for the court to consider: (1) continuing Respondent's visitation in the form of a step-up plan; and (2) awarding Respondent primary physical custody of the children with non-professionally supervised visitation for the Petitioner.

The Petitioner opposes Respondent having primary physical custody of the children, in part, on the grounds that Respondent has allegedly violated the court's orders by including Mr. Sysock on vacations out of town with the children and otherwise allowing Mr. Sysock to be present during Respondent's visitation with the children. (Brian Seaholm, Supp. Decl., filed June 12, 2026, ¶ 7.) Notably, however, Respondent submitted evidence in her June 04, 2026, supplemental declaration showing that Respondent apparently travelled

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with the children to Malibu, despite the court specifically denying this request. (Vanessa Seaholm, Supp. Decl., filed June 04, 2026, ¶ 4 & Ex. H.) In light of this evidence, Petitioner's argument opposing custody for Respondent based on Respondent's non-compliance with the court's orders is not well taken. It appears to the court that both parties consider the court's orders as merely advisory — that is simply not the case.

The court will adopt the recommendation of the CCRC counsellor to implement a step-up plan for Respondent's visitation, as follows:

- (1) During the first two weeks of July 2026, Respondent shall have unsupervised visitation with the children using the schedule that is currently in place (three visits per week for up to two hours per visit, with dates and times to be set by the parties based on their schedules and the children's obligations). Mr. Syssock shall not be present at any time during Respondent's visitation.
- (2) During the second two weeks of July 2026, Respondent shall have unsupervised visitation with the children from Friday at 3:00 p.m. to Monday at 8:00 a.m. Mr. Syssock shall not be present at any time during Respondent's visitation.
- (3) During the first two weeks of August 2026, Respondent shall have unsupervised visitation with the children from Friday at 3:00 p.m. to Monday at 8:00 a.m. Mr. Syssock may be present during Respondent's visitation, but only during the hours of 10:00 a.m. and 6:00 p.m. Otherwise, Mr. Syssock shall not be present.
- (4) Beginning the third week of August 2026, the parties shall have week-on, week-off custody of the children. Exchanges shall occur Monday mornings through school, or 8:00 a.m. if there is no school. Mr. Syssock may be present during Respondent's custody time, but again, limited to the hours of 10:00 a.m. and 6:00 p.m. Otherwise, Mr. Syssock shall not be present.
- (5) Beginning October 1, 2026, the parties shall have week-on, week-off custody of the children. Exchanges shall occur Monday mornings through school, or 8:00 a.m. if there is no school. There shall be no restriction regarding Mr. Syssock's presence.

Petitioner's RFO Filed May 19, 2026

The court denies Petitioner's RFO, as phrased, as moot.

TENTATIVE RULING #1:

RESPONDENT'S RFO FILED MARCH 10, 2026: THE RFO IS GRANTED IN PART. THE COURT ORDERS RESPONDENT'S VISITATION SHALL CONTINUE AS SET FORTH IN THE STEP-UP PLAN OUTLINED HEREIN.

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PETITIONER'S RFO FILED MAY 19, 2026: THE RFO IS DENIED AS MOOT.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 573-3042 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL.RULE CT. 3.1308; LOCAL RULE 8.05.07.